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The Constitution of India

Topics covered

- The making of the Constitution
- The Preamble to the Constitution
- Guiding principles
- Fundamental Rights
- Fundamental Duties

If your school had no rules, these things might happen:

- Children could come to school whenever they liked.
- Teachers could hold classes whenever they liked.
- On some days there would be no break because someone forgot to ring the bell.
- On some days school would continue until late in the evening.

Would your school work well? Why? Discuss this.

Just as a school needs rules to run well, a country needs rules too. These are called laws. The **fundamental** (essential and main) laws for governing India are in the **Constitution** of India.

THE MAKING OF THE CONSTITUTION

When the British ruled India, they made the laws for India. Indians fought to become free from British rule. Just before Independence, in 1946, a special assembly called the **Constituent Assembly** was formed. Its main task was to create a Constitution which would have laws for the people of independent India. It had men and women from all over India and all walks of life—

A 1946 photograph of the members of the Constituent Assembly

doctors, lawyers, teachers, business people, farmers and many others. They discussed each part, each line and each word of the new Constitution. They took nearly 3 years to complete this work but eventually they created an excellent Constitution for the new India.

Imagine that you are a member of the Constituent Assembly. Tick the points you might think about:

- Indians in British India were not important in their own country. This should never happen in independent India.
- Even if many Indians are poor and belong to backward sections of society, everyone must be given respect and be able to improve their lives.
- All Indians should decide what kind of government they want.

The writing of the Constitution, based on the discussions in the Constituent Assembly, was a very important task, and was given to a seven-member committee. Its chairman was **Dr B. R. Ambedkar**.

Dr B. R. Ambedkar was a famous and highly educated lawyer.

India began to follow the new Constitution from **26 January 1950**. This is why we celebrate Republic Day on 26 January every year.

Before Independence, though a large part of India was under British rule, some areas were governed by Indian rulers. After Independence these kingdoms became part of India. The new Constitution applied to the people of these areas as well.

Some important parts of the Constitution are the Preamble, the Directive Principles and the Fundamental Rights and Duties, about which you will learn more in this chapter.

Did you Know?

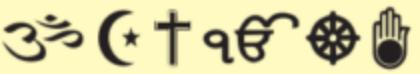
Two original copies of the Constitution were handwritten in Hindi and English. Every member of the Constituent Assembly signed these. They are kept in the library of the Indian Parliament.

THE PREAMBLE TO THE CONSTITUTION

The word '**preamble**' means '**an introduction**'. The Preamble to our Constitution has wonderful words. They tell us what kind of country the Constituent Assembly wanted India to be. This is why we need to understand the Preamble well. Read the Preamble on the next page. Then read the table that explains the meanings of the beautiful words in the Preamble.

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:
JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity; and to promote among them all
FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;
IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do **HEREBY**
ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

The Preamble to the Constitution

WE, THE PEOPLE OF INDIA	We, all the people of India, big or small, rich or poor, of every region and religion …
having solemnly resolved to constitute India into a	... have decided to make India into the following ...
SOVEREIGN	... an independent country—no other country will rule over us ...
SOCIALIST	... the wealth of the country should be shared by all Indian people, so that everyone has the things she or he needs, like food, shelter and clothing...
SECULAR 	... where there is no official religion and the government does not give more importance to one religion over any other; in our country of numerous religions all people are free to have whatever religious beliefs they like ...
DEMOCRATIC REPUBLIC	... a government elected by the people (a democracy) where a king or a queen will not be the head of the country; the head will be a president (a republic)...
and to secure to all its citizens	... to make sure that all Indian citizens get ...
JUSTICE, social, economic and political	... fair treatment; all people should have a fair chance to earn their living and all people should be able to vote freely ...

LIBERTY of thought, expression, belief, faith and worship	.. freedom to speak without fear, to think what they please, to believe in what they like, to practise whatever religion they like without being afraid—but none of these things should harm anyone else ...
EQUALITY of status and opportunity	... an equal and fair opportunity, whether rich or poor, men or women, of whatever region or religion, to have good lives ...
and to promote among them all FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation	... and make sure that all Indians try to live like brothers and sisters; all people should be treated with respect; the country should remain united, whole and unharmed ...

Discuss

- Why was the work of the Constituent Assembly important for India?
- Why do citizens of India need to understand what the Preamble means?

GUIDING PRINCIPLES

To make sure that the ideas of the Preamble are put into practice, the Constitution has guidelines, or instructions, to help governments. These are called **Directive Principles of State Policy**. They help governments to decide what their **policies** (plan of action) should be. They also help judges to understand what the Constitution makers wanted for India.

There are several Directive Principles. Some are given in the box. The Directive Principles are not laws—they are only guidelines. Governments have tried to follow the Directive Principles when making laws for the country.

Some Directive Principles

- There should be equal pay for equal work for both men and women.
- Help should be given to people who are old, sick, disabled, unemployed or in any other serious need.
- Help should be given to the weaker and backward sections of our society so that they may improve educationally and economically.
- Nutrition and public health for Indian citizens should be improved.
- The environment, forests and wildlife of the country should be protected and improved.
- Monuments, places and objects of historic or artistic interest should be protected.

An arch in the Qutb Minar complex of monuments, built nine or ten centuries ago. What is the Directive Principle about such monuments?

FUNDAMENTAL RIGHTS

India has great diversity in its population. The men, women and children of India are rich and poor, speak numerous different languages, belong to many different castes and religions and also live in various different regions. Our Constitution gives to *all* these citizens, six **Fundamental Rights** (see box). The word 'fundamental' means 'essential and most important'; a right is something that you must have. Fundamental Rights are essential and important rights that people must have in a democracy.

Here are some important aspects of these six Fundamental Rights.

1. Right to Equality
2. Right to Freedom
3. Right against Exploitation
4. Right to Freedom of Religion
5. Cultural and Educational Rights
6. Right to Constitutional Remedies

Fundamental Rights in the Indian Constitution

Right to Equality

- All citizens are equal before the law—no difference should be made between men and women, rich and poor, or between people who belong to different religions, castes or regions.
- **Untouchability** (the practice in the caste system where people belonging to some castes are considered to be untouchable) is **abolished** (ended completely) and practising it is forbidden.

Right to Freedom

- Freedom of speech and expression—people are free to speak or to express themselves through literature, art or drama, but this should not be hurtful to others.
- Protection of a person's life and freedom

Right to Education
In 2009 a law was made that gives all Indian children between the ages of 6 and 14 the right to free and compulsory education.

Right against Exploitation

Exploitation means to treat someone unfairly, especially making people work for no money or very little money.

- No child below the age of 14 years should be employed in any place that may be dangerous to health.
- No one can force people to work without payment or for very little payment.

Girls of 5–7 years of age working in a bangle factory. Which rights are being denied to them?

Right to Freedom of Religion

- Citizens are free to follow any religion that they wish to.
- They are also free to talk about their religion.

Cultural and Educational Rights

- Every community has the right to preserve, protect and develop its own culture. Culture means a community's traditional way of doing things, their dress and food, their art, music, dance and literature, their language and their religion.
- Interests of citizens belonging to **minority** groups, including their right to set up schools and colleges, are protected. A minority group is a smaller group within a larger group.

Right to Constitutional Remedies

Remedy means a way to improve a difficult situation.

- This right allows citizens to go to court if any of the other Fundamental Rights are being disregarded or taken away in any manner.

Think and answer

Which fundamental right is disregarded in the following cases?

- Children work in many small factories that make fireworks where they are paid very small amounts of money.
- Some villages have separate wells for upper caste and lower caste people. The lower caste villagers cannot use the well meant for the upper castes.

Though the Constitution guarantees Fundamental Rights to all citizens, we should not exercise our rights in such a way that the rights of other people are disregarded.

FUNDAMENTAL DUTIES

Fundamental Duties are the duties of Indian citizens towards their country. Some are:

1. to respect the Constitution, the national flag and the national anthem
2. to promote harmony and the spirit of common brotherhood amongst all the people of India
3. to value and preserve the rich heritage of our entire culture
4. to protect and improve the natural environment including forests, lakes, rivers and wildlife, and to have compassion for living creatures
5. to safeguard public property and to avoid violence

The members of the Constituent Assembly had a dream about what kind of country India should become. It took three years to turn those dreams into India's main laws. This is why India's Constitution is considered by many people to be one of the best in the world.

Values and Life Skills

The Indian Constitution reminds everyone that India is a democratic republic where every citizen is equal and has Fundamental Rights.

- Can you think of two reasons why the Fundamental Rights in the Constitution are important for all citizens?

REMEMBER

1. The Constitution contains the most important laws of the country.
2. The Preamble to the Constitution contains ideas about the kind of country India should be.
3. The Directive Principles of State Policy are guidelines for making government policies.
4. The Constitution guarantees six Fundamental Rights to all citizens.
5. The Constitution also requires all citizens to observe the Fundamental Duties.

NEW WORDS

Fundamental	the most central and important part of something
Constitution	the system of laws and basic principles that a country is governed by
Preamble	an introduction to a book or a written document
Policy	a plan of action of a political party or a government
Abolish	to officially end a law or a practice
Exploitation	when somebody treats somebody else in an unfair way, especially in order to make money from their work
Minority	a smaller part of a group; less than half the people in a large group

EXERCISES

A. Fill in the blanks.

1. The Constituent Assembly was formed in ..... .
2. The word 'preamble' means ..... .
3. The ..... Principles of State Policy help governments to make policies.
4. The Constitution says that all Indian citizens are ..... .
5. While insisting on our Fundamental Rights, we cannot ..... the rights of others.

6. It is our ..... to respect the Constitution, the national flag and the national anthem.

B. Write true or false.

Correct the false statements in your notebook.

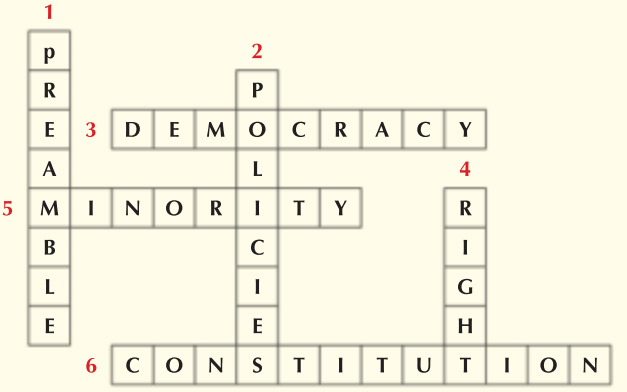
1. The task of the Constituent Assembly was to put together the main laws for governing India.
2. India began following the Constitution on 26 January 1950.
3. Areas that were ruled by kings and princes became part of India before Independence.
4. The Directive Principles are laws that the government must follow.
5. There are eight Fundamental Rights in the Constitution.
6. The Right to Education makes it compulsory to give free education to children between 6 and 14 years of age.

C. Match the following.

A	B
1. Right to Equality	a. No one can be forced to work without payment or for very little payment.
2. Right to Freedom	b. Citizens can go to court if any Fundamental Right is being taken away.
3. Right to Freedom of Religion	c. Minority groups can set up their own schools.
4. Right against Exploitation	d. All Indian citizens are equal before the law.
5. Cultural and Educational Rights	e. Indians can practise any religion they wish to.
6. Right to Constitutional Remedies	f. A person's life and freedom is protected.

D. Crossword

Write clues for this crossword in your notebook.



E. Answer the following questions.

1. What is a constitution?
2. Who was Dr B. R. Ambedkar?
3. Why is the Preamble to our Constitution important?
4. What are the Directive Principles of State Policy?
5. What is the difference between Fundamental Rights and Fundamental Duties?
6. Why do you think that Fundamental Duties are a part of the Constitution?

THINGS TO DO

TP A. On your own

Write two Fundamental Rights and Fundamental Duties that you as a child must have, at home or at school. Share these in class.

B. In a group

Work in groups to make a picture story based on the Preamble. Take up each part of the Preamble. Make drawings or paste pictures for it. Display them in class.

C. Picture study

What are our Fundamental Duties towards these?

The people of India

The natural environment in India

WEBLINK

Samvidhaan: The making of the Constitution of India (bi-lingual): https://www.youtube.com/watch?v=atSSN6ZLzXQ&list=PLS69xBR2mFuMNzbvLttScgY_MJhLmaPsm (Accessed on 21 July 2017)